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The Geneva Debacle of March 2012: The lessons not learnt

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The outcome in Geneva last year (March 2011) of the voting on Sri Lanka's conduct of the war and related human rights record was very clearly in favour of the Sri Lankan government. The line up in the voting and the scale of the majority were such that it appeared that this year too the outcome would be similar, despite some recent wavering by India. But the conduct of the Sri Lankan government in the mean time was so counter-productive that it precipitated the debacle of March 2012. We should have anticipated the disaster but it seems to have taken the Sri Lankan government by surprise.

If the Sri Lankan government had learnt at least the main lessons that it had opportunities to learn in recent years, the voting would have been very different – perhaps even more favourable to the Sri Lankan government than last year. Apart from mindlessly deflecting votes that could have come our way, we alienated many countries and many institutions. Our people will pay the economic price for such aimlessly alienation in the years to come. Even after the event the Sri Lankan government went on proclaiming the vote as a defeat for Sri Lanka, rubbing salt on its own wounds, and needlessly dragging down the population who were never consulted on this issue.

No two situations are identical but we can learn much from the success or failure of other governments and leaders in crisis situations elsewhere. For example, the impending passage of the historic Voting Rights Bill of 1965 in the USA was in serious crisis but President Johnson and Martin Luther King jointly overcame that crisis. I

recommend to those interested in strategic leadership, Ronald A. Heifetz's "Leadership without Easy Answers" (The Belknap Press of Harvard University Press, Cambridge, Mass; London, England, 1994;), especially chapter 6 titled, "On a Razor's Edge". In this chapter he particularly deals with Johnson "Leading with Authority" and also with King "Leading without Authority". In other chapters he deals with other leaders such as Gandhi who very successfully and astutely "Led without Authority".

The unlikely partners and heroes of the passage of the U.S. Voting Rights Act were Martin Luther King and L. B. Johnson. King was handicapped by at least one serious moral failing. Moreover, King's support base in the USA were mostly voteless Blacks, numbering about 10 percent of the total population, unlike Gandhi in India and Mandela in South Africa who had the backing of massive majorities in those countries and whose triumphs were inevitable in due course. The outcome of the Voting Rights Act remained very doubtful till King and Johnson made it happen against massive odds. It needs to be noted that Johnson entered the US Congress as a Texas based White racist in 1937. As set out by Heifetz: "For nearly 20 years he had voted against every civil rights bill before Congress – laws to end the poll tax, segregation in the armed services, and lynching".

Johnson gradually modified his political stands thereafter as the Civil Rights Movement advanced, and he began to entertain ambitions for higher office. In the 1960 Presidential election, John F. Kennedy, reputed to be a Northern liberal, picked Johnson as his running mate to provide political and regional balance to his candidacy. President Kennedy initiated the Civil Rights Act, inclusive of a strong Voting Rights Clause, but his Vice President Johnson was not very enthusiastic. The draft Act got diluted and the Voting Rights Clause dropped altogether before the Act was finalized. In the mean time Kennedy was assassinated in 1964 and Johnson became President. Johnson took a political decision to stick to Kennedy's policies. Accordingly, he successfully steered through the Civil Rights Act but without the Voting Rights Clause.

The Civil Rights Act helped to desegregate and gave Blacks access to jobs and other forms of economic advance but it was the Voting Rights Clause that was vital for political empowerment. Blacks all over USA, led by King and others, continued to demonstrate and insist on voting rights. The town of Selma was one of many flash points. Selma had more Blacks than Whites but even as late as March 1965, only 3 percent of the registered voters were Black. The rest of the Blacks were excluded in one way or other, e.g. by requiring them to pass literacy tests that virtually no one could pass. Blacks organized protests but Governor Wallace ensured that they remained largely voteless. Demonstrations by Black men, women and children were put down very brutally by the State police. TV crews filmed these scenes which were telecast into homes throughout the USA. Horrified Americans urged Johnson to intervene, but he held back.

There were marches into and sit-ins at the White House by civil rights activists but Johnson continued to hold back. There has been, from the times of the civil war, a long history of opposition to federal intervention into the affairs of the states. Johnson did not want to rouse such feelings prematurely till pressure to intervene became irresistible. He knew that the Voting Rights Act was needed but also that for most liberal Whites, especially in the South, the issue of voting rights for Blacks was of low priority. Privately, Johnson encouraged King to mount protests; both knew that these would provoke violent suppression and even killings, but this was a price that

needed to be paid. They were using the media to mould White public opinion to accept Federal intervention and an effective Voting Rights Act, and also to promote national unity. In contrast, the media in Sri Lanka seem to be used by the state to obstruct progress towards settling the National Question.

Civil rights activist became very critical of Johnson for failing to intervene. King continued with his protests, but Johnson continued to hold back. At one point King escalated the protest by convening a Clergy March, inviting those in religious orders all over the USA, men and women, to join in a 50 miles march from Selma to the state capital, Montgomery. Anticipating violent intervention by the state police, King appealed to the Federal Court to restrain the state police; instead the Federal Court ordered that the march be postponed indefinitely till adequate protection could be assured. This created a crisis, and Johnson sent an emissary to work out a compromise. That compromise was to march to the bridge near the end of the town of Selma, pray on the bridge, and then turn back. King reluctantly agreed but insisted that the march would resume later. In the event two of the protesters were killed, a Black youth shot by state troopers before the march, and a White clergyman brutally beaten to death after the march. When the marchers reached the bridge, as agreed, they stopped and prayed. When they opened their eyes after prayers, the state troops had moved away, virtually inviting the marchers to continue to Montgomery, defying the Federal court order. This was a trap but King did not fall into it. The marchers turned back as agreed but promising to march again all the way to Montgomery on another day.

The pressure on Johnson to intervene kept mounting but he continued to hold back. He was waiting for that pressure to build up to a level that would overwhelm any massive negative reaction to federal intervention. He knew that if he acted prematurely, Wallace would effectively mobilize Southern White reaction to it. But he also knew that widespread violence against Blacks, men, women and children, and against other peaceful protesters, graphically telecast frequently throughout the USA, was hurting the political prospects of Wallace, who could not hold out much longer. As Johnson anticipated, within a few days of the Clergy March, Wallace asked to see Johnson to request federal intervention to maintain law and order. That meeting and request were promptly agreed to, and the meeting was immediately followed up by a Press Conference convened by Johnson at which he announced, in Wallace's presence, that the Governor had requested Federal intervention but that Johnson would ensure that the intervention was the minimum necessary to maintain law and order. In one stroke Wallace was defanged and the way cleared for Federal intervention.

The back of the opposition to the Voting Rights Act had been broken, bringing much credit to Johnson. He wasted no time in asking for and receiving an invitation to address a joint meeting of the Congress. In his inspired and historic speech at that meeting he took the moral high ground and urged the Congress, this time very receptive, to quickly pass the Voting Rights Bill that he was introducing. The Voting Rights Act came into law on 6th August 1965.

Compared to the obstacles that Johnson has to overcome, the problems of President Rajapakse relating to the Geneva resolution are mostly minimal. Within the island his political support base has been unassailable. He has much to gain and very little to lose by implementing the LLRC report, by fully implementing the Constitution (including the 13th Amendment), by resolving the National Question to the satisfaction of the Tamils and Muslims, by imposing discipline among the unruly members among his followers, and by maintaining law and order. In fact this is what many leaders within his party and almost the entirety of the domestic opposition and the international

community have been asking him to do. Accounting for those taken into custody and investigating allegations of unlawful activity (including assassinations, torture, rape and extortion) on the part of the armed forces and paramilitia would be more problematic, but if he undertakes to act accordingly and sets about it step by step, his standing, internal and external, will rise except among some fringe elements within the island and among the Diaspora. Those fringe elements will only discredit themselves President Rajapakse surely understands this. It is investigating the past that may be problematic, not the resolution of the political problems referred to in the Resolution. Perhaps some of these political problems are internal to himself, located in a blind spot in his politics, just as President Johnson at one time had problems with several civil rights issues in his political vision. Johnson's political ambition helped him to progressively shed those inhibitions relating to civil rights issues such as segregation, affirmative action, voting rights for Blacks, etc. For Johnson the residual blind spot was the Vietnam war and it was that blind spot that ultimately ended his political career.

What can the Sri Lankan government learn from the Voting Rights crisis in the USA? As soon as Johnson had decided that he wanted an effective Voting Rights Act, he went on to work out, with King's backing, appropriate strategies to eliminate or reduce the divergence between that objective and the positions taken by key opponents such as Governor Wallace and Senate Republican Leader Everett Dirksen. Both Johnson and King avoided hurling abuse at those holding different views, as that would invariably be counter-productive. Johnson was a master strategist who kept his eyes constantly on his ultimate objective (a strong Voting Rights Act), refusing to be diverted by the success or failure of intermediate objectives (such as political demonstrations) or by those who crossed his path. That he was a Southern White with a racist past may have helped him to understand and overcome the opposition from that quarter. President Rajapakse too, given his Southern roots and empathy with Southern hard liners, should not find it difficult, if he is so inclined, to overcome opposition to the implementation of the LLRC report and the Constitution (inclusive of the 13th Amendment in full), to deal with Sinhalese, Tamil and Muslim communities to clear the way for national reconciliation, and to enforce discipline and law and order.

There is truth in the charges that some of the Western countries have double standards on war crimes but it is also true that some of those countries helped Sri Lanka very substantially to secure international condemnation and isolation of the LTTE, and to win the war. Moreover these charges have little to do with the political issues at the heart of the proceedings in Geneva. A problem with charges of "double standards" and "bullying" is that these will bring ill consequences that will soon hit us. Indeed they have already begun to do so. Unfortunately it is the Sri Lankan people, not the Sri Lankan government, who will be hit. If we are serious about those allegations, are we willing to formulate and present a resolution charging some of the western powers with war crimes in Iraq and Afghanistan? I suspect that we would find it very difficult to find co-sponsors for such a resolution. If so, such a resolution will be a non starter and cannot be part of a viable strategy.

Our major handicap is that we seem to have no clear objective. Are we committed to 13 A+ (as Sri Lanka government has frequently proclaimed) or 13 A- (as also frequently proclaimed in respect of police and land powers) or in negotiating a settlement with Tamils and Muslims, or in implementing all of the LLRC report or some of it or none of it? To be credible, such commitment needs to be detailed and contained within specified time frames. The fact that the Interim Report of the LLRC has not been implemented, a complaint detailed in the LLRC

report itself, throws doubt on the commitment of the Sri Lankan government. If we do not spell out credible time-bound commitments and make adequate progress within the intervening months, the outcome in March 2013 could be worse than in March 2012. The charges of “double standards” and “bullying” make have helped to gain some Asian votes in Geneva but had less success with African and Latin American governments. But we do over the next few months will determine how the voting will work out next time. If we take the steps referred to above and meet the issues outlined in the Geneva resolution, that could be the core of a winning strategy. We need to engage with all key actors, internal and external, friendly and not so friendly. Perhaps we could even co-sponsor a resolution with India, the West, Japan, China, Russia and other countries and get it unanimously passed at the next meeting in Geneva. But for that to happen many changes internal to the Sri Lankan government are needed and much works need to be done at home and abroad. If it happens, it could helped to transform the future of our Island and our people.

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This paper reflect the views of the author, Devanesan Nesiah, and not those of any of the institutions that he has been associated with.

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